

of the subjects, or to the raising of faction, controversy, debate, or to any manner of misgovernment; so that no wrong or injury, either public or private, can be done but that it shall be (here) reformed or punished by due course of law (B).

For the general learning of this and the like cases, all that was said in the argument of this case, was divided into these questions. 1. What were sufficient causes to (a) disfranchise a citizen, freeman, or burgess of any city or borough incorporate, and to discharge him of his freedom and liberty, and what not? 2. How and by whom, and in what manner, such citizen or burgess shall be disfranchised? 3. If the return of his removal, or disfranchisement, imports sufficient matter, but is false; what remedy shall be for the party grieved in such case?

As to the first, it was resolved, that the cause of disfranchisement ought to be grounded upon an Act which is (b) against the duty of a citizen or burgess, and to the prejudice of the public good of the city or borough whereof he is a citizen or burgess, and against his oath which he took when he was sworn a freeman of the city or borough; for although one shall not be charged in any Judicial Court for the breach of a (c) general oath, which he took when he became officer, minister, citizen, burgess, &c. yet if the act which he doth be against the said (d) duty and trust of his freedom, and to the prejudice of the city or borough, and also against his oath, it enforces much the cause of his removal, and there is a condition in law *tacite* and annexed to his freedom or liberty; which if he breaks, he may be disfranchised; but words of contempt, or (e) *contra bonos mores*, although they be against [98 b] the chief officer, or his brethren, are (f) good causes to punish him, as to commit till he has found good sureties of his good behaviour, but not to disfranchise him: so if he intends, or endeavours of himself, or conspires with others, to do a thing against the duty or trust of his freedom, and to the prejudice of the public good of the city or borough, but he doth not execute it, it is a good cause to punish him, as is aforesaid, but not to disfranchise him, for (g) *non officit conatus, nisi sequatur effectus*; and *non officit affectus, nisi sequatur effectus*. And the reason and cause thereof is, that (h) when a man is a freeman of a city or borough, he has a freehold in his freedom for his life, and with others, in their politic capacity, has an inheritance in the lands of the said corporation, and interest in their goods, and perhaps it concerns his trade and means of living, and his

(B) Lord Ellesmere, in his Observations, p. 11, remarks: "The point in question only was, what cause was sufficient for a corporation to remove a burgess from his place; he digresseth from his matter and saith, it was resolved, that to the Court of K. B. belongeth authority, not only to correct errors in judicial proceedings, but other errors, and misdemeanors extra-judicial, tending to the breach of the peace or oppression of the subjects, or to the raising of faction, controversies, debates, or to any manner of misgovernment, so that no wrong or injury either public or private can be done, but that this shall be reformed or punished by due course of law. Herein (giving excess of authority to K. B.) he hath as much as insinuated that this Court is all-sufficient in itself to manage the State; for if the King's Bench may reform any manner of misgovernment (as the words are) it seemeth that there is little or no use either of the King's Royal care and authority exercised in his person, and by his proclamations, ordinances, and immediate directions, nor of the council-table, which under the King is the chief watch-tower for all points of government"—*Vid. Groenvelt v. Burwell*, 1 L. Raym. 469. Com. Dig. Courts B. 1. *Mandamus A.* 4 Inst. 71. 3 Black. Comm. 41.

(a) Cro. Jac. 506. Cro. Eliz. 33. 1 Roll. Rep. 409. 3 Bulst. 189, 190. Styles 478, 479. 2 Roll. 455.

(b) Cro. El. 33. 4 Leon. 61.

(c) 3 Inst. 166. 1 Roll. Rep. 226. Dyer 333. pl. 28. Palm. 144.

(d) 1 Roll. Rep. 224, 225. 409. Pollexfen's Arg. in Quo War. 110. Poph. 134. 2 Roll. Rep. 11. Godb. 281. Palm. 455.

(e) Cro. Jac. 306. Moor 411. 512.

(f) Moor 247. 411, 412. 3 Bulst. 189, 190. 1 Roll. Rep. 79. 224, 225. Cro. El. 79. 689. Cro. Jac. 506. Palm. 127.

(g) 1 Roll. Rep. 226.

(h) Cr. Jac. 540.